

Amendment Letter



Agreement # 4905C20327.4

SUBJECT: Amendment 004 for Agreement Number < 4905C20327> (the "Transaction Document")

EFFECTIVE DATE OF AMENDMENT: Upon date last signed by the parties

IBM (China) Company Limited ("IBM" or "Buyer"), and George P. Johnson Event Marketing Co., Ltd ("Supplier") entered into the above-referenced Transaction Document on Jan. 2005. The parties desire to amend the Transaction Document as follows:

Choice of Forum

Notwithstanding Section 15.3 of the Base Agreement, all disputes arising out of or in connection with this Agreement shall be settled by the parties through friendly negotiation. In the event said disputes can not be settled through friendly negotiation, either Party may submit the dispute to arbitration to be conducted by China International Economic and Trade Arbitration Commission in Beijing in accordance with its then current arbitration rules. The arbitration tribunal shall be composed of three (3) arbitrators. The arbitral award shall be final and binding. This PA will be governed by the laws of the People's Republic of China.

Criminal and other Background Checks

Upon IBM request and subject to applicable law, Supplier will provide documentation to IBM to verify its compliance with this section. The documentation includes, without limitation, criminal background check certificates from other governments, institutions, organizations, Supplier Personnel's representation and Supplier's warranty.

Contractor Safety Guide

Supplier will require its Personnel assigned to work on IBM's or Customer's premises to comply with the IBM Global Contractor Safety Guide, as may be amended from time to time or a local country equivalent that may be provided by IBM. The Guide is applicable for all US locations, unless a location specific guide exists for the particular IBM site where the work is to be performed at the following URL:
<https://www.ibm.com/procurement/sicsg>

Except as amended herein, all other terms and conditions of the subject Transaction Document shall remain in full force and effect.

The parties acknowledge that they have read this Amendment, understand it, and agree to be bound by its terms and conditions. Further, they agree that this Amendment and the subject Transaction Document are the complete and exclusive statement of the agreement between the parties, superseding all proposals or other prior agreements, oral or written, and all other communications between the parties relating to this subject. This Amendment may be signed by duly authorized representatives of IBM and Supplier and in one or more counterparts, each of which shall be deemed to be an original and all of which when taken together shall constitute one single agreement between the parties. Once signed, any copy of this Amendment made by reliable means (such as photocopy, facsimile, or electronic scan) will be considered an original of this document.



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ACCEPTED AND AGREED TO:

By: IBM (China) Company Limited

Buyer/IBM Signature

Date

Printed Name

Organization & Title

Address

ACCEPTED AND AGREED TO:

By: George P. Johnson Event Marketing Co., Ltd

Supplier Signature

Date

Printed Name

Organization & Title

Address